

whereas permissive licenses are not so strict about retaining the rights for derivative works.

Permissive licences allow a user to adopt a different licence for the modified source code of an existing free/open source project. Software using this licence can be modified and the derived work can be made closed source software. This provision can lead to the exploitation of free/open source software by people with vested interests. The BSD License and the MIT License are permissive licences, and are sometimes misleadingly called copyleft licences because they lie somewhere between copyright software and copyleft software. There is also a slightly stricter variant of permissive licences called copyleft licences, which have an additional restriction while redistributing a derived work. They ensure that all the direct modifications of an existing work retain the same licence. The simple BSD License is an example of a copyleft licence. So, every copyleft licence is permissive but not all permissive licences are copyleft. The Apache License is an example of a permissive licence that is not copyleft.

The relative openness of different types of software

Now let us consider some obscure types of software for their perceived openness or ‘closedness’. First, let us consider freeware. This is software freely available to end users (free as in free beer). But the source code is not open for inspection or modification. So it can’t be termed free or open source software. This shows us another of the paradoxes associated with free software. Software which is freely available may not be free software, whereas software for which you have to pay money might actually be ‘free software’. Another uncommon type of software is abandon ware—software that has been abandoned by its owner or developer. The owner may no longer be tracking or enforcing copyright violations; even so, this software does not qualify as free or open source software. You must be very careful if your project development involves this sort of software because you could be charged for copyright violation at a later stage.

Some strange licences

There are also some weird software licences whose usage is very limited. These are created for the sake of fun or in protest. For example, there is one called the Beer-ware License! It is a very relaxed licence and its full text, obtained from Wikipedia, is given below.

```
/*
 * -----
 * "THE BEER-WARE LICENSE" (Revision 42):
 * <phk@FreeBSD.ORG> wrote this file.  As long as you retain
this notice you
 * can do whatever you want with this stuff.  If we meet some
day, you think
```

* this stuff is worth it, you can buy me a beer in return.

Poul-Henning Kamp

```
* -----
*/
```

The Beer-ware License was created to mock the large number of restrictions made by the GNU General Public License, a supposedly ‘liberating’ licence. It essentially gives every one every freedom. But no self-respecting programmer will squander away their programs in such a manner. No real software project has adopted this licence. Another quirky and interesting licence is called the WTFPL. Modesty does not allow me to expand the abbreviation of the licence but interested readers can search the Web for an answer. This is a permissive free software licence approved by the FSF. Both the aforementioned licences dedicate the software to the public domain.

Some guidelines for choosing a free/open source licence

Let me attempt to give a few guidelines for choosing the right software licence for your project. The first suggestion is that if your software is worth even a dime, please consult a decent lawyer. Software licensing is a slippery slope; one wrong move and you are in deep trouble. So if you have the slightest of doubts while choosing a software licence, take the decision only after consulting an expert. But if you are developing software with no monetary benefits in mind, then you can adopt one of the free/open source licences, after some deliberation. If you want your work and all the subsequent derivative works to be placed in the free software domain, it is better to choose a copyleft licence like the GNU General Public License. One problem with this choice is that your software or library might be overlooked by some of the companies in the free/open source sector that are developing commercial software. Even though it is a free software licence, the GPL is a very strict one -- adopting it guarantees the freedom of your software forever but might make it less popular in the long run. On the other hand, if you are more interested in your work proliferating, rather than being in strict allegiance with the free software philosophy, then you can select one of the permissive licences like the MIT License. This, essentially, guarantees almost every freedom including the freedom for proprietary software to link your libraries. This may not be preferable for many developers.

Another situation in which you need to opt for a licence is when you are producing a manual or document for uploading onto the Web. Then it is a very good idea to license the work with the Creative Commons (CC) License. This can be used to make sure that your work is attributed to you, shared alike, is used for non-commercial purposes and anyone trying to create work that is derivative of yours can be stopped.